

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

GREGORY PATTERSON AND CODY PATTERSON ,

Plaintiff, **SUMMONS**

-against-

Index No.:

POLICE OFFICER GLENN HUDECEK, SERGEANT
JOSE TRONCOSO; and POLICE OFFICER JOHN DOES
1-5,

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Bronx
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Verified Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 31, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO:

Police Officer Glenn Hudecek, Shield No. 018059, Patrol Borough Bronx Task Force,
1278 Sedgwick Avenue, Bronx, NY 10452-1401
Sergeant Jose Troncoso, Patrol Borough Bronx Task Force, 1278 Sedgwick Avenue,
Bronx, NY 10452-1401

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

GREGORY PATTERSON AND CODY PATTERSON ,

Plaintiff,

-against-

POLICE OFFICER GLENN HUDECEK, SERGEANT
JOSE TRONCOSO; and POLICE OFFICER JOHN DOES
1-5,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs GREGORY PATTERSON AND CODY PATTERSON, by their attorneys, Jacobs & Hazan, LLP, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 31, 2014, at approximately 9:00 p.m., plaintiffs Gregory Patterson and Cody Patterson, were lawfully walking in the vicinity of Prospect Avenue and Westchester Avenue, Bronx, New York, when the individually named New York City Police Officer defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned plaintiff's, without reasonable suspicion, probable cause or any legal justification. Although the stop, seizure, and arrest of plaintiffs Gregory Patterson and Cody Patterson were unlawful and on their face, based upon the defendant police officers' description of the facts that formed their basis for stopping, seizing, and arresting plaintiffs, the defendant supervisors of the defendant police officers unlawfully approved the unlawful stop, search, seizure and arrest of plaintiff which allowed the unlawful seizure of plaintiff to be extended longer than it would have otherwise lasted if the defendant supervisors had followed the law and voided the arrest of plaintiffs when they were learned that the facts known to the arresting officers at the time of plaintiffs' arrests were insufficient to establish reasonable suspicion or probable cause to stop, question, search, seize, and/or arrest plaintiffs. Plaintiffs were released from Bronx Central Booking on February 1, 2014 at approximately 9:00 pm without being arraigned or charged with committing a crime because the Bronx District Attorney's Office declined to prosecute plaintiffs due to insufficient

evidence to show plaintiffs were involved in a crime. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, interrogated, and detained plaintiffs in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Gregory Patterson is a resident of the State of Virginia.

3. Plaintiff Cody Patterson is a resident of the State of New York.

4. Police Officer Glenn Hudecek, Shield No. 018059, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. Police Officer Glenn Hudecek, Shield No. 018059, is and was at all times relevant herein, assigned to the Patrol Borough Bronx Task Force.

6. Police Officer Glenn Hudecek, Shield No. 018059 is being sued in his individual and official capacities.

7. Sergeant Jose Troncoso, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Sergeant Jose Troncoso, is and was at all times relevant herein, assigned to the Patrol Borough Bronx Task Force.

9. Sergeant Jose Troncoso is being sued in his individual and official capacities.

10. New York City Police Officers John Does #1-5 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

11. Police Officer John Does #1-5 are being sued in their individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On January 31, 2014, at approximately 9:00 p.m., plaintiffs Gregory Patterson and Cody Patterson, were lawfully walking in the vicinity of Prospect Avenue and Westchester Avenue, Bronx, New York, when the individually named New York City Police Officer defendants unlawfully stopped, questioned, frisked, searched, unlawfully seized, falsely arrested, and falsely imprisoned plaintiff's, without reasonable suspicion, probable cause or any legal justification.

17. Specifically, on January 31, 2014 at approximately 9:00 pm, plaintiffs Gregory Patterson and Cody Patterson were lawfully walking in the vicinity of Prospect Avenue when two individuals walking nearby got into a physical altercation.

18. Plaintiffs Gregory Patterson and Cody Patterson walked away from the physical altercation, but before plaintiffs were able to completely leave the area, one of the individuals involved in the fight shot the other individual.

19. Upon information and belief, a cab driver witnessed the shooting and called 911 to report the incident.

20. The individually named defendants responded to the scene of the shooting shortly thereafter and when they arrived, the taxi cab driver identified plaintiffs Gregory Patterson and Cody Patterson as individuals who witnessed the shooting and who were standing in close proximity to the shooting when it occurred.

21. At no time did the taxi cab driver or any other witness inform the defendant police officers that plaintiffs Gregory Patterson and Cody Patterson participated in the shooting or any other crime.

22. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiffs' persons or from a location within plaintiffs' possession, custody or control.

23. At no time did the defendant police officers observe plaintiffs commit a crime or break a law, nor were they informed by a third party that plaintiffs committed a crime or broke a law and the defendant police officers did not have a legal basis or probable cause to arrest plaintiffs.

24. The individually named defendant police officers unlawfully approached, stopped, questioned, searched, and seized plaintiffs, without reasonable suspicion, probable cause, or any legal justification.

25. The defendant police officers unlawfully handcuffed plaintiffs and arrested them without legal justification or probable cause..

26. At no time did plaintiffs commit a crime, nor did the defendant police officers have any reason to believe they committed a crime.

27. Thereafter, plaintiffs were forcefully placed into the rear of a squad car by the defendant police officers and transported to the 41st precinct.

28. Upon arrival at the 41st precinct, plaintiffs were subjected to an unlawful search by the defendant police officers without reasonable suspicion or probable cause to believe plaintiffs had any illegal contraband in their possession custody or control.

29. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiffs, or from their custody, possession or control.

30. Plaintiffs were unlawfully fingerprinted and photographed at the 41st Precinct.

31. Plaintiffs were unlawfully interrogated by Detectives at the 41st Precinct for a lengthy period of time without their attorneys present despite the fact that plaintiffs repeatedly asked the Detectives to provide them with attorneys during the interrogation.

32. On the arrest paperwork filled out by the defendant police officers for plaintiffs, the defendant police officers charged plaintiffs with crimes the officers lacked probable cause to accuse them of committing, including but not limited to Attempted Murder, Assault with Intent to Cause Serious Injury With A Weapon, and Criminal Possession of a Weapon in the 4th Degree with Intent to Use the Weapon.

33. Plaintiffs were unlawfully detained in holding cells at the 41st Precinct until the morning of February 1, 2014 at which time defendants transported the plaintiffs against their will to Bronx Central Booking whereat their unlawful detention continued.

34. Plaintiffs were unlawfully detained in several large holding cells at Central Booking, with other prisoners who were accused of committing violent crimes.

35. On February 1, 2014 at approximately 9:00 pm New York City Correction Officers working at Central Booking called plaintiffs' names and informed plaintiffs that they were free to leave because the Bronx District Attorney's Office declined to prosecute them

36. Plaintiffs did not appear before a judge, were not arraigned and were released from custody without ever being charged with or accused of committing a crime by the District Attorney's Office.

37. According to the Bronx District Attorneys Office, the reason why they declined to prosecute plaintiffs was because they lacked evidence to show that plaintiffs had any involvement in a crime.

38. According to the Bronx District Attorney's Office, the investigation into the shooting and witnesses indicated that plaintiffs were both present for the incident, but "did not take any actions contributing to the crime nor did they at any point participate in the crime, other than their mere presence."

39. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, interrogation, false arrest, and false imprisonment of plaintiffs.

40. The unlawful stop, question, frisk, search, false arrest, false imprisonment, and unlawful interrogation, against plaintiffs by the individually named defendants caused plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

41. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

49. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

51. The conduct of defendants in stopping, frisking, and searching, plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search inside plaintiffs' pockets, inside of the waistband of their pants and underneath their clothing employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiffs.

58. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The defendants that did not physically touch plaintiffs, but were present when other officers violated plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

65. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

68. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs Gregory Patterson and Cody Patterson demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 31, 2017

/s/

By:

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 31, 2017

/s/
STUART E. JACOBS